

Court No. - 3

Case :- WRIT - C No. - 33981 of 2023

Petitioner :- Nandu Sharma

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Bipin Lal Srivastava

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Siddhartha Varma,J.

Hon'ble Manoj Bajaj,J.

As prayed, put up this case on 17.11.2023 as fresh.

Order Date :- 6.11.2023

Raj

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Hon'ble Siddhartha Varma, J.

Hon'ble Manoj Bajaj, J.

1. Instructions filed today be kept on record.
2. On the basis of the fact that there was a theft of electricity, a provisional assessment dated 31.5.2022 was served upon the petitioner. Thereafter the petitioner represented to the Electricity Department on 11.5.2023. The sole prayer of the petitioner is that the representation of the petitioner be decided as per Clause 6.8 of the U.P. Electricity Supply Code, 2005.
3. We do not find any reason to doubt that the Electricity Department would not decide the representation of the petitioner as per Clause 6.8 of the U.P. Electricity Supply Code, 2005.
4. However, since learned counsel for the Electricity Department himself has stated that on 4.11.2023, the Electricity Department has come out with a One Time Settlement scheme, we provide that the petitioner be also, if he so desires, given the benefit of One Time Settlement scheme dated 4.11.2023.
5. With these observations, the writ petition stands disposed of.

Order Date :- 17.11.2023

GS

(Manoj Bajaj, J.)

(Siddhartha Varma, J.)